

26STCP01150 26STCP01150

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-07-14

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Case Number: 26STCP01150 Hearing Date: July 14, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Demurrer - without Motion to Strike

The Demurrer filed by

Defendant is sustained with leave to amend.

BACKGROUND

Plaintiff Esperanza Mercado (Plaintiff) filed this action against Mahyar Zarabian (Defendant), her landlord, on March 23, 2026. The Complaint alleges that Defendant has failed to maintain Plaintiff's rental unit at 1117 1/2 West 38th Street, Los Angeles, in a habitable condition; that the code enforcement and health departments have cited the unit and has exposed Plaintiff to mold; that Defendant has refused to make repairs and to accept rent, and rejected Plaintiff's attempt to cure a three-day notice; that Defendant mishandled relocation assistance and an escrow account and attempted an at-fault eviction that jeopardized Plaintiff's relocation assistance; and that the Los Angeles Housing Department has since offered a reduced relocation amount.

The Complaint does not separately identify or label any cause of action.

Defendant filed a Demurrer. Plaintiff filed a late Opposition. Plaintiff did not file an opposition before the hearing on the demurrer on July 1, 2026, which the Court had to continue to the current date of July 14 so as to provide an interpreter for Plaintiff. The Court did not authorize Plaintiff to file a late opposition after the July 1 hearing date, and thus does not consider the untimely opposition filed on July 13, 2026.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “‘A demurrer tests the pleading alone, and not the evidence or the facts alleged.’ [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

ANALYSIS

I. Failure to State Facts

Sufficient to Constitute a Cause of Action

Defendant first demurs on the ground that the Complaint does not state facts sufficient to constitute a cause of action. The Court agrees. The Complaint lists a variety of grievances against Defendant: that the unit is uninhabitable and has been cited by code enforcement, that Plaintiff was exposed to mold, that Defendant refused to accept rent and rejected an attempt to cure a three-day notice, that Defendant mishandled relocation assistance and an escrow account, and that Defendant attempted an at-fault eviction. The Complaint does not, however, identify any cause of action, separate its theories, or allege the ultimate facts required to establish the elements of any recognized claim.

For example, to the extent Plaintiff intends to assert a claim for breach of the implied warranty of habitability, she must allege the existence of a material defective condition affecting the habitability of the premises, notice to the landlord within a reasonable time after Plaintiff discovers the condition, that the landlord was given a reasonable time to correct the deficiency, and resulting damages. (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.) The Complaint references uninhabitable conditions and code citations, but does not allege these elements in support of any identified claim. The Complaint's other apparent theories,

including violations of the Rent Stabilization Ordinance and the Ellis Act, retaliation, and fair housing violations, are likewise unsupported by allegations of the facts required for each such claim.

Because the Complaint does not allege facts establishing the elements of any cause of action, it is subject to demurrer under subdivision (e). (*Rakestraw v. California Physicians' Service*, *supra*, 81 Cal.App.4th at p. 43.)

II. Uncertainty

Defendant also demurs on the ground that the Complaint is uncertain. Although a demurrer for uncertainty is disfavored, it is properly sustained where the Complaint is so incomprehensible that the defendant cannot reasonably respond. (*Khoury v. Maly's of California, Inc.*, *supra*, 14 Cal.App.4th at p. 616.) Here, the Complaint mixes several potential theories without separating or labeling them, and does not state the legal basis for the relief sought or the facts supporting Plaintiff's claimed damages. Defendant, therefore, cannot reasonably determine which claims are asserted against him or frame a responsive pleading. The demurrer is sustained with leave to amend.

CONCLUSION

Defendant's Demurrer is sustained. Plaintiff has twenty days leave to amend.